

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

— vs. —

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

APPENDIX TO COMPLAINANT'S STATUS REPORT

APPENDIX “1”

Marcus A. Nussbaum

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Sunday, August 27, 2017 6:43 PM
To: Gerry Doyle; Jon Werner
Subject: Docket No.: 14-16

Counsel,

Please be advised that on Monday August 28, 2017 complainant intends to file a motion seeking to correct the record with respect to the Commission's Notice Denying Extension of Time, which incorrectly states that complainant filed its second motion for an extension of time on August 16, 2017.

Said motion will also request that the Commission disregard and/or strike respondents' Opposition to Complainant's Motion for an Indefinite Stay to the extent that said filing was untimely; that in the process of filing same, the respondents have improperly requested the Office of the Secretary to grant relief by email; and that said opposition improperly refers to matters outside of the scope of complainant's requested relief.

Please advise as soon as possible as to whether or not your client will consent to complainant's requested relief from the Commission.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: [888-426-4370](tel:888-426-4370)
Fax: [347-572-0439](tel:347-572-0439)
<http://www.nussbaumlawfirm.com/>

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APPENDIX “2”

Marcus A. Nussbaum

From: Secretary <secretary@FMC.gov>
Sent: Wednesday, August 30, 2017 11:46 AM
To: Marcus Nussbaum; Secretary
Cc: Gerry Doyle; Jon Werner
Subject: RE: FMC Docket No.: 14-16

Mr. Nussbaum,

I am rejecting this filing as it is not in compliance with Commission rules because counsel did not confer with opposing party as required by 46 C.F.R. 502.71.

Thank you,

Rachel E. Dickon
Assistant Secretary
Federal Maritime Commission
Ph 202-523-5725

From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]
Sent: Monday, August 28, 2017 1:24 AM
To: Secretary <secretary@fmc.gov>
Cc: Gerry Doyle <gdoyle@doylelaw.net>; Jon Werner <jwerner@lyons-flood.com>
Subject: FMC Docket No.: 14-16

Dear Secretary of the Federal Maritime Commission,

I represent the Complainant in the above referenced matter.

Attached please find: COMPLAINANT'S MOTION TO CORRECT THE RECORD AND FOR OTHER RELIEF and APPENDIX.

Counsel for the respondents has been served herewith and via first class mail.

The original and five copies are being mailed to your office under separate cover.

Regards,

APPENDIX “3”

Marcus A. Nussbaum

From: Jeffrey, Eric <ejeffrey@nixonpeabody.com>
Sent: Thursday, September 8, 2016 11:34 PM
To: marcus.nussbaum@gmail.com
Cc: Vohra, Anjali
Subject: Motion to Seal

I will in the morning be filing a motion to seal your disgraceful comments about Ms. Vohra, which in my view range well outside the litigation protection against defamation and may be the basis of a lawsuit against you. Please let me know by 9 am whether you consent.

Sent from my iPhone

Marcus A. Nussbaum

From: Jeffrey, Eric <ejeffrey@nixonpeabody.com>
Sent: Friday, September 9, 2016 9:54 AM
To: secretary@fmc.gov
Cc: Judges Mailbox; Marcus Nussbaum; Vohra, Anjali
Subject: Consolidated Dockets No. 15-11 and No. 1953(I)
Attachments: Respondents' Motion to Seal Complainants Unauthorized Reply(2) 4810-7431....docx
Importance: High

Dear Rachel

Enclosed please find Respondents' Motion to Seal Complainants' Cowardly and Unauthorized Reply. The original and five copies identical to the attached will be mailed today. The courtesy copy to the Presiding Officer and electronic service copy to Complainants' Counsel are transmitted herewith.

Please note: (i) that the Motion requests immediate, interim relief pending any response from Complainants; (ii) after the Motion was signed and in production, Complainants' Counsel contacted me and declined to consent.

Best regards,

Eric



Eric C Jeffrey

Counsel

ejeffrey@nixonpeabody.com

T 202-585-8215 | C 703-919-3374 | F 855-782-6662

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APPENDIX “4”

Marcus A. Nussbaum

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Wednesday, August 30, 2017 12:38 PM
To: Gerry Doyle; Jon Werner
Cc: Secretary
Subject: Re: FMC Docket No.: 14-16

Counsel,

Please be advised that on Thursday, August 31, 2017 complainant intends to re-file a motion seeking to correct the record with respect to the Commission's Notice Denying Extension of Time, which incorrectly states that complainant filed its second motion for an extension of time on August 16, 2017.

Said motion will also request the relief already set forth in complainant's prior filing of Monday, August 28, 2017 (Docket Entries 108 and 109).

Please advise by 1:00 p.m. on August 31, 2017 as to whether or not your client will consent to complainant's requested relief from the Commission as set forth in the motion.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
<http://www.nussbaumlawfirm.com/>

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On Wed, Aug 30, 2017 at 6:45 PM, Secretary <secretary@fmc.gov> wrote:

| Mr. Nussbaum,